Coolfont Mountainside Association
96 Recreation Way, Berkeley Springs, WV 25411
South System PWS#9933047
North System PWS#9933048

Coolfont Mountainside Association

Cross-Connection and Backflow Prevention Policy

April 2026

Based on **WV R**ural **C**ommunity **A**ssistance **P**rogram Documents

Cross Connection and Backflow Prevention Form

The Coolfont Mountainside Association (CMA) recognizes Cross-Connections and Backflow conditions in a public water system and/or a customer's water distribution system pose a threat to the public health and the environment. Therefore, the following policy applies to all CMA controlled public water systems, also known as CMAWS, and to our customer's water distribution systems located on properties served by the CMA water system.

I. Purpose

A. To protect the public health and the public water system served by the Coolfont Mountainside Association water system from the possibility of contamination or pollution by isolating within its customer's internal distribution water systems, such contaminants or pollutants that could backflow due to back-pressure or back-siphonage into the public water system.

B. To promote the elimination and/or control of cross-connections and backflow conditions, actual or potential, within a customer's internal distribution water systems, non-potable systems, plumbing fixtures and processes; and

C. To provide for the maintenance of a continuing program of cross-connection and backflow prevention control which will effectively prevent the contamination or pollution of the public and/or customer's water systems from cross-connections and backflow conditions.

II. Authority

By the Federal Safe Drinking Water Act of 1974 and 1996 amendment, and the Code of West Virginia Chapter 16, Article 1 and Public Health Laws, Title 64, Series 15 (CSR15) effective March 13, 2004 and amended March 27, 2024 along with WV Bureau for Public Health Chapter 1, Article 5B, the Coolfont Mountainside Association has the primary responsibility for preventing water from unapproved sources, or any other substances, from entering the public potable water system.

III. Responsibility

The CMA is primarily responsible for the protection of the public potable water distribution system from contamination or pollution due to backflow from back-pressure or back-siphonage of contaminants or pollutants through the water service connections it owns. If, in the judgment of the CMA, an approved backflow preventer assembly is required at the water service connection to any customer's premises, CMA or its delegated agent shall give notice in writing to said customer to install an approved backflow preventer assembly at each service connection to his premises and/or as identified to the customer elsewhere on the customer's property. The customer shall, within ninety (90) days, install an approved assembly or assemblies, at his own expense, and failure, refusal, or inability on the part of the customer to install said assembly or assemblies within ninety (90) days shall constitute grounds for discontinuing water service to the premises until such assembly or assemblies have been properly installed.

IV. Definitions

A. Approved: Accepted by the CMA or a recognized West Virginia state authority as meeting an applicable specification stated or cited in the WV Department of Health and Human Resources regulation, or as suitable for the proposed purpose.

B. Assembly: A **backflow preventer** usually consisting of a combination of approved check valve components and additional instrumentation including approved shutoff valves and test cocks.

C. Auxiliary Water Supply: Any water supply or water source, on or available, to a **customer's** premises provided by other than the CMA approved **public water system**.

D. Backflow: The undesirable reversal of water flow or introduction of other liquids, mixtures or substances, caused by a pressure differential in the distribution pipes of a **potable water** system.

E. Backflow Preventer: A **device** or **assembly**, or means designed to prevent **backflow** in a **potable water** system. Most commonly categorized as **air gap, atmospheric vacuum breaker, barometric loop, double check with intermediate atmospheric vent, double check valve assembly, hose bibb vacuum breaker, pressure vacuum breaker, reduced pressure principle assembly,** and **residential dual check.**

1. Air Gap: A physical separation sufficient to prevent **backflow** between the free-flowing discharge end of the **potable water** system and any other system. Physically defined as a distance equal to twice the diameter of the supply side pipe diameter but never less than one (1) inch.
2. Atmospheric Vacuum Breaker: A **device** which prevents **backflow** by creating an atmospheric vent when there is either a negative pressure or sub-atmospheric pressure in a water system.
3. Double Check Valve Assembly: An **assembly** of two (2) independently operating spring loaded check valves with tightly closing shut-off valves on each side of the check valves, and properly located test cocks for the testing of each check valve.
4. Hose Bibb Vacuum Breaker: A **device** attached to a hose bibb and which acts as an **atmospheric vacuum breaker.**
5. Pressure Vacuum Breaker: An **assembly** containing an independently operated spring loaded check valve and an independently operated spring loaded air inlet valve located on the discharge side of the check valve. The **assembly** includes tightly closing shut-off valves on each side of the valves and properly located test cocks for the testing of the check and air valve.
6. Reduced Pressure Principle Backflow Preventer: An **assembly** consisting of two (2) independently operating approved check valves with an automatically operating differential relief valve located between the two (2) check valves, tightly closing shut-off valves on each side of the check valves plus properly located test cocks for the testing of the check valves and the relief valve.

F. Backpressure: A condition in which the **customer's** system pressure is greater than the

CMA water system pressure.

G. Back-Siphonage: The flow of water or other liquids, mixtures or substances into the distribution pipes of a **potable water** system from any source other than the primary source caused by the sudden reduction of pressure or negative pressure in the **potable water** system.

H. Containment (external protection): A method of **backflow** prevention which requires a **backflow preventer assembly** be installed after the meter and prior to any **water service entrance**.

I. Contaminant: A substance that will impair the quality of **potable water** to a degree that it creates a serious health hazard to the public leading to poisoning or the spread of disease.

J. Coolfont Mountainside Association: The Coolfont Mountainside Association, also abbreviated CMA, is the homeowner's association that owns and operates the common lands, amenities, water and sewer systems of the association. For purposes of this policy, unless specifically stipulated otherwise, CMA means the Board of Directors, the CMA Water and Sewer (CMAWS) Committee, the CMAWS Operations Manager, and those specifically hired or contracted to fulfill the purposes of this policy.

K. Cross-connection: Any physical (direct or indirect) connection between the **public water system** and an unapproved water supply or other source of contamination or pollution.

L. Customer: A customer is described as a billing unit or service connection to which drinking water is delivered by a **public water system**. A **customer** may also be identified as an **owner**.

N. Degree of Hazard: The level of potential risk to public health and the potential adverse effects upon the **public water system** based on the probability of **backflow** occurring and the type or nature of the **contaminant** or **pollutant**. A health hazard is any condition, device or practice which creates or may create a danger to health and well-being of the water consumer. A severe health hazard is any health hazard (**contaminant**) that could be expected to result in significant morbidity or death. A non-health hazard (**pollutant**) is any condition that could degrade the water quality or adversely affect the **public water system.**

O. Device: A single body **backflow preventer** with one or two check valves that cannot be tested and does not have shut off valves or test cocks.

P. Fixture Isolation (internal isolation): A method of **backflow** prevention where a **backflow preventer** is located to control a **cross-connection** or potential source of contamination at an in-plant or facility piece of equipment or process located other than at a **water service entrance**.

Q. Owner: Any person who has legal title to, has license to operate, or resides at a property or facility which is supplied drinking water by CMA. Also, may be referred to as a **customer**.

R. Person: Any individual, partnership, company, public or private corporation, political

subdivision, agency of the State, agency or instrumentality of the United States, or any other legal entity.

S. Pollutant: "A substance that degrades the water quality, disrupts ecosystems, or threatens human health."

T. Potable Water: Water considered safe for human consumption as described by the **West Virginia Bureau for Public Health**.

U. Public Water System: Includes the works, and auxiliaries, for the collection, treatment, storage and distribution of drinking water from the source of supply to a **customer's** premises. Also, may be known as the CMA or CMAWS water system**.**

V. Water Service Entrance: That point in the customer's water system beyond the sanitary control of the **public water system**, generally considered to be the outlet end of the water meter and always before any unprotected branch water line.

W. West Virginia Bureau for Public Health (WVBPH): An agency of the West Virginia Division of Health and Human Resources.

V. Administration

A. The CMA will establish, operate, and promote a cross-connection and backflow prevention control program, to include the keeping of necessary records, which fulfills the requirements of the WVBPH Cross-Connections and Backflow Prevention Regulations.

B. All Owners served by the CMA water systems will comply with the provisions of this CMA policy. All owners will allow their property to be inspected by CMA designated representatives. All owners will disclose to CMA expected uses of the property that may impact the CMA water system, any known or suspected cross-connections of plumbing serving the property, any known or suspected need for backflow preventers, any known or anticipated business use of property, type of business, equipment or chemicals used by the business connected to or potentially impacting the CMA water system, or similar out of the ordinary residential use of property that may require cross-connection with the CMA water system. All owners will advise the CMA in writing at least forty-five (45) days in advance of implementation of any planned changes to use of property involving use of property that may require cross-connection and backflow prevention of the water system. All owners selling their property will advise prospective buyers of any existing cross-connections, the requirement for backflow preventers, the requirement for inspection, and the contents of this policy prior to sale of a property within or served by the CMA water system.

C. If the CMA requires the public water system be protected by containment, the Owner shall be responsible for the installation and maintenance of the required backflow preventer assembly(ies) and for water quality beyond the outlet end of the containment assembly(ies) and may utilize fixture isolation protection for that purpose. The Owner may also seek local public health officials, or personnel from the CMA or their designated representatives, or

certified/licensed private sector personnel to assist in a survey of owner facility(ies) and to assist in selection of proper containment assemblies and/or fixture isolation devices, and the proper installation of these assemblies/devices.

VI. Requirements

CMA

A. On new construction, the CMA will conduct at the owner's request at a mutually arranged time prior to construction a survey and/or review of plans to determine the need for, and type of, backflow preventer assembly(ies), if any, that will be required based on cross-connection(s) and the degree of health hazard(s).

B. For premises existing prior to the start of this program, CMA will provide a self-certification survey (Sample Version Attached) to be completed by the owner within 90 days to document potential cross-connections and mitigation steps. CMA will periodically provide the survey for recertification at the same time each owner is asked to pump their septic system in accordance with CMA Septic System Maintenance Policy. (Usually every 3-5 years)

C. The CMA will not allow a cross-connection to remain unless it is protected by an approved air gap or backflow preventer assembly(ies). Some backflow preventers require regular testing at the owners expense to ensure satisfactory operation.

D. If CMA becomes aware of a potential cross-connection issue, CMA shall inform the Owner in writing of the issue and will allow fifteen (15) days for a mitigation to be put in place and evidence provided to CMA. If an Owner fails to correct the issue, the CMA will inform the Owner in writing that the water service to the Owner's property will be terminated within ten (10) days of issuing the notice. If CMA or its representatives determine there are valid extenuating circumstances as to why the correction(s) has not been made, CMA may grant an extension of up to thirty (30) days.

E. If the CMA determines at any time a serious threat to public health exists, water service will be terminated immediately.

F. The CMA will report any backflow incident(s) occurring in the public water system to the WVBPH as soon as possible but no later than twenty-four hours (24) after the incident becomes known by CMA or its designated representatives.

Owners

A. All CMA water system customers will allow access to their property by CMA for the purposes of this policy. Customers may be required to provide a copy of current plans of their property in order to determine the type of backflow preventer assembly(ies), if any, that will be required based on cross-connection(s) and the degree of health hazard(s). All owners planning a change to their use of their property or their water system design will notify CMA in writing of the planned change and allow access to their property. Common types of Backflow preventers likely required at CMA include:

1. Hose Bib Vacuum Breaker: Usually used on external hose bibs with hoses to water plants or apply weed preventer or other chemicals. They are low-cost metal or plastic devices attached directly to hose bibs to prevent backflow or back-siphoning into a home. No shut off device can be installed downstream. Likely uses are to prevent backflow from hose-end sprayers (no shut off mechanism) and may be appropriate for a hose used to fill a hot tub/spa. They are used in no or low hazard situations. They do not require annual testing and certification.
2. Pressure Vacuum Breaker: These are larger, more complex versions of hose bib vacuum breakers. They only work when there is no back pressure on the device. Likely uses are irrigation/lawn sprinklers and they may be appropriate for hoses used to fill a hot tub or spa. No shut off valve can be downstream. They must be installed at least 12" above the highest outlet to operate effectively. They do not require annual testing and certification.
3. Double Check Valve Assembly: These are designed for low to medium hazard situations and can be installed in continuous and back pressure situations. Examples include fire sprinkler systems and boiler water connection and may be used for direct connection to a hot tub or spa. They ensure water flows in one direction and protect against back pressure and backflow. They must be protected from freezing. They will require annual testing and certification.

B. The owner shall provide the CMA an initial "Homeowner Survey of Cross-Connection and Backflow Prevention Need" (see attached form) within ninety (90) days of customer notification. Customers will then provide updates to it in conjunction with the septic maintenance policy of their property (CMA Septic System Maintenance Policy). New owners will provide an initial copy of the same form within ninety (90) days of home purchase or transfer of title and then provide updates to it in conjunction with the septic maintenance policy of their respective property.

C. The Owner shall be responsible for the elimination or protection in each water service line of all cross-connections, actual or potential health hazard(s), or other degradation to the public water system on his/her premises.

D. The Owner, after having been informed in writing by the CMA, shall at the owner's expense, install, maintain, and test or have tested, all required backflow preventer assemblies that require annual testing on the owner's property.

E. The Owner shall correct within ten (10) days any malfunctioning or defective backflow preventer assembly(ies) revealed by periodic testing or visual detection, including repairs, testing, removal, or replacement of the required backflow preventer assembly(ies).

F. The Owner shall inform the CMA of any proposed or planned modifications of cross-connection(s) or backflow assemblies installed and obtain approval by CMA prior to institution. Owners that become aware of changes to approved cross-connection(s) or a backflow assembly(ies) will immediately notify the CMA and provide follow-up written notification within seven (7) days.

G. The Owner shall not install or allow installation of a by-pass around any backflow preventer assembly unless there is a backflow preventer assembly of the same type on the bypass. Owners who cannot shut down operation for testing of a backflow assembly(ies) must supply a temporary or replacement assembly(ies) to allow testing to take place.

H. The Owner shall install backflow preventer assemblies in a manner compliant with standard plumbing codes.

I. Any Owner with or establishing an auxiliary water source other than that provided by CMA must have CMA approval in writing, whether cross connected or not. Permission to cross-connect any device between CMA's water source and the auxiliary water source may be denied. The Owner may be required to install a backflow preventer assembly at the service entrance if a private water source is maintained, even if it is not cross-connected to the CMA system.

J. In the event the Owner installs plumbing to provide potable water for domestic purposes which is on the CMA side of a backflow preventer assembly, such plumbing must have its own backflow preventer assembly installed.

K. The Owner is responsible for payment of all service fees, any county or state permits, periodic assembly(ies) testing or retesting, and any follow-up survey or non-compliance survey of CMA. CMA fees are due and payable within twenty (20) days of invoicing by CMA.

L. The Owner must maintain records for a minimum of three (3) years of installation and removal, for all testing, repair and maintenance, and all backflow incidents for all assemblies/devices on the Owner's water distribution system(s).

M. The Owner will report to CMA and the WVBPH any backflow incident occurring at property served by the CMA water system(s) as soon as possible but no later than twenty-four hours (24) of the owner or property manager becoming aware of the incident. Initial reports may be by voice; voice reports will be followed up in writing and include the reporter's name, the backflow preventer type and location, the address and lot number, and owner contact information (name, address, phone number, and email) for subsequent questions. These records and reports are to be made available to the CMA and/or WVBPH upon request.

N. Owner failure to comply with any part of this policy may result in the owner being charged in accordance with the Coolfont Mountainside Association Schedule of Fines, Fees, and Charges Policy Resolution.

VII. Degree of Hazard

The CMA recognizes the threat to the public water system arising from cross-connections and potential health hazards. CMA will classify the degree of hazard which will determine the backflow preventer type requirement.

VIII. Existing In-Use Backflow Prevention Devices

Any existing backflow preventer assembly shall be allowed by the CMA to continue in service providing the owner has the required proof of regular testing unless the degree of hazard to public health, as determined by the CMA, is such as to supersede the effectiveness of the present backflow preventer assembly. Where the degree of hazard has increased, as in the case of a residential installation converting to a business establishment, any existing backflow preventer assemblies must be upgraded to a reduced pressure principal assembly, or a reduced pressure principle assembly must be installed in the event no backflow preventer assembly is present.

IX. Periodic Testing

A. Backflow preventer assemblies, unless exempted in this policy or in writing by the CMA, shall be tested and inspected at the time of initial installation and at least every twelve months thereafter. Hose bib vacuum breakers and pressure vacuum breakers may require periodic testing.

B. For backflow preventers where testing is required, periodic testing shall be performed by a WVBPH certified tester. This testing will be done at the Owner's expense.

C. Any backflow preventer assembly which fails during a periodic test will be repaired or replaced. When repairs are necessary, upon completion of the repair, the assembly will be retested at the Owner's expense to ensure correct operation. High hazard situations will not be allowed to continue unprotected if the backflow preventer assembly fails the periodic test and cannot be repaired immediately. In other situations, a compliance date of not more than thirty (30) days after the test date may be established by CMA or its representative. The Owner is responsible for the costs of all testing, repair service, replacement parts, or a replacement assembly. Parallel installation of two (2) assemblies is an effective means of the owner ensuring uninterrupted water service during testing or repair of one of the assemblies and is strongly recommended when the Owner desires such continuity.

D. The CMA may require more frequent backflow preventer assembly testing than specified in A. above in cases with a history of non-compliance, test failures, or the CMA determines the degree of hazard involved warrants additional testing. Cost of the additional tests will be borne by the Owner.

X. Records

A. The CMA will initiate, maintain, and update the following for at least three (3) years unless otherwise stated:

1. Records on customer surveys and customer cross-connections.
2. Records on all customer backflow preventer assemblies and devices in service as attested by customers.
3. Records on customer backflow preventer inspections and tests.

4. Records on customer repairs and replacements of backflow preventers.
5. Records of customer removal of backflow preventers.
6. Records of all backflow incidents occurring within CMA properties.
7. Records of all the above supplied to WVBPH.

B. The Owner will maintain and update a complete set of records on each of their backflow preventers from purchase to sale of property. This will include:

1. All inspections, tests, repairs and overhauls.
2. These records of inspections, tests, repairs and overhauls will be submitted to the CMA upon request.

C. Upon request, the CMA will submit records of surveys, test results, corrective actions, backflow incident reports and other pertinent information to WVBPH and others as required by West Virginia.

306

Coolfont Mountainside Association Cross-Connection and Backflow Policy

This policy was duly adopted at a meeting of the CMA Board of Directors held: April 6, 2026 as required by the Federal Safe Drinking Water Act of 1974 and 1996 amendment, and the Code of West Virginia Chapter 16, Article 1 and Public Health Laws, Title 64, Series 15 (CSR15) effective March 13, 2004 and amended March 27, 2024 along with WV Bureau for Public Health Chapter 1, Article 5B.

Motion by: Valerie Creason Seconded by: Stephen Crane

VOTE:

	YES	NO	ABSTAIN	ABSENT
Norm Rosenberg, President	X			
Stephen Crane, Vice President	X			
Valerie Creason, Secretary	X			
Jay Ervin, Treasurer	X			
Dave Creason, Director	X			
Evelyn Israel, Director				X
Nancy Lidard, Director	X			

ATTEST:

Secretary

4/20/24
Date

Cross Connection and Backflow Prevention Form

Homeowner Survey of Cross-Connection and Backflow Prevention Need

Use of this form is not optional. All Owners serviced by CMA are required to respond using this form within ninety (90) days of the CMA Cross Connection-Backflow policy becoming effective and owners being notified in compliance with WV and CMA Covenants and Restrictions, Bylaws, and other rules and regulations. All owners serviced by CMA are required to provide access to their property by CMA personnel or designated representatives to survey for compliance and determine cross-connection and backflow prevention risks. Failure to comply with the policy risks immediate termination of water service to the owner property.

Date: (MM-DD-YYYY _____

CMA Lot #: _____

Owner/Renter/Lessee Name: _____

CMA Address: _____

Mailing Address _____
(if different from CMA Address)

Phone: _____

Email: _____
(needs to be the same as provided to CMA for other business matters)

Do you plan to operate a business: ☐ Yes ☐ No

If Yes, type of business: _____

Total number of cross connections on your property: _____

Describe each cross connection (type, location, chemicals involved, and actions taken to prevent backflow into the CMA water system):

_____

_____

_____

Number of hose bibs: _____ Number of backflow prevention devices installed: _____

Number of Pressure Vacuum Breakers (PVB) needed: _____ Number PVB installed: _____

Describe each need for a Pressure Vacuum Breaker:

_____

_____

_____

Number of Double Check Valves (DCV) needed: _____ Number of DCV installed: _____

Describe each suspected need for Double Check Valve Assembly:

_____

_____

_____

Number of Reduced Pressure Zone devices needed: _____

Describe why a RPZ is required:

_____

_____

I understand my signature below acknowledges understanding of the CMA Cross Connection and Backflow Prevention Policy, my count and description of the systems is accurate in accordance with the descriptions provided by that policy, and that I have purchased and installed.

Signature of Owner: _____ Date (MM-DDYYYY-): _____

Printed Name of Owner: _____